

Vandana Ghavri vs Ajay Kalyana (2023:Rj-Jd:31668) on 26 September, 2023

Author: Madan Gopal Vyas

Bench: Madan Gopal Vyas

[2023:RJ-JD:31668]

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR
S.B. Civil Transfer Appl. No. 256/2022

Vandana Ghavri D/o Rajuji Ghavri W/o Ajay Kalyana, Aged About
27 Years, R/o Adarsh Colony, Near Pani Ki Tanki, Nagori Bera,
Mandore Jodhpur (Raj.)

----Petitioner

Versus

Ajay Kalyana S/o Bhuri Lal, R/o 52, Amba Mata Scheme, Behind
Police Station Amba Mata, Amba Mata, Udaipur (Raj.)

----Respondent

For Petitioner(s)	:	Mr. Om Prakash Kumawat
For Respondent(s)	:	None present

HON'BLE MR. JUSTICE MADAN GOPAL VYAS

Judgment 26/09/2023 The present transfer petition under Section 24 of CPC has been preferred by the petitioner-wife for transferring the case No. 402/2022 preferred by the respondent herein under Section 13A of the Hindu Marriage Act 1955, from the Family Court, Udaipur to Family Court No.1, Jodhpur.

2. Learned counsel for the petitioner submits that the application under Section 12 of the Domestic Violence Act preferred by the petitioner is pending before the Metropolitan Magistrate No.5, Jodhpur. Thus it is prayed that application under Section 13A of Hindu Marriage Act may also be transferred to Family Court No.1, Jodhpur.

3. Despite service nobody appeared on behalf of the respondent.

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4. The Hon'ble Supreme Court in the case of Vinisha Jitesh Tolani @ Manmeet Laghmani vs Jitesh Kishore Tolani 2010(1) WLC (SC) 705 has observed that in the matrimonial proceedings initiated by the husband against the wife the convenience of the wife has to be considered for contesting the suit,

and accordingly the matrimonial proceedings ought to be transferred where the wife is residing.

5. Having regard to the facts and circumstances of the case, this Court deems it appropriate to transfer the petition under Section 13A of the Hindu Marriage Act from Family Court, Udaipur to the Family Court No.1, Jodhpur.

6. The transfer petition is allowed accordingly.

7. It is ordered that the Civil case No.402/2022 under Section 13A of the Hindu Marriage Act 1955, pending before the Family Court, Udaipur be transferred to the Family Court No.1, Jodhpur.

8. The learned Family Court, Udaipur is directed to send the record of the case to Family Court No.1, Jodhpur.

9. Both the parties are directed to appear before Family Court No.1, Jodhpur on 16.10.2023.

10. Learned Family Court No.1, Jodhpur is directed to expedite the trial of the case.

(MADAN GOPAL VYAS),J 94-CPGoyal/-

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